

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 08/05/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV420300	Northeast Securities Co., Ltd v. Que, Xiaolan, Lin et al.	MOTION FOR LEAVE TO INTERVENE Please Ctrl Click (or scroll down to) Line 1
LINE 2-4	23CV428045	Mahmoud Ascarie v. Great American Assurance Co. et al.	DEMURRER & MOTION TO STRIKE First Amended Complaint was filed on July 23, 2026; as such, Demurrer (x 2) and Motion to Strike are Off Calendar
LINE 5	24CV431077	Julianne Mejia v. The County of Santa Clara	MOTION: ADMISSIONS DEEMD ADMITTED & SANCTIONS Admissions Deemed Admitted: rendered moot by the filing of answers Sanctions: Good cause appearing, Court grants sanctions for two hours reasonable attorney's fees. Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.
LINE 6	25CV456689	Richard Chamberlain v. Santa Clara Public Defender's Office, et. al.	MOTION TO COMPEL Withdrawn by Plaintiff July 24, 2026
LINE 7	25CV457483	Richard Chamberlain v. Jason Chamberlain	MOTION TO COMPEL Moot in light of prior ruling on Motion for Summary Judgement
LINE 8	25CV457483	Richard Chamberlain v. Jason Chamberlain	MOTION FOR CONTINGENT RESTORATION AND SCHEDULING Please Ctrl Click (or scroll down to) Line 8
LINE 9	25CV459816	Onemain Financial, LLC. Et al. v. Mario Melendez Castro	MOTION FOR RECONSIDERATION Please Ctrl Click (or scroll down to) Line 9

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LINE 10 & 11	25CV477676	Linda Johnson et al v. Hanford Hotels, Inc.	COMPROMISE ON MINOR'S CLAIM & MOTION TO SEAL
			Please Ctrl Click (or scroll down to) Line 10 Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.
9:01 LINE 1	23CV424490	Fr. Neelima Kethineni, M.D v. Techrobit Inc. and Diane Chipana.	MOTION TO WITHDRAW AS ATTORNEY Defendant's counsel moves to be Relieved as Counsel for Defendant pursuant to Code of Civil Procedure Section 284(2). Good Cause appearing, the motion is GRANTED. Movant shall give notice to Techrobit Inc. within 2 court days of the hearing, including the following: Because a corporation may appear only through licensed counsel, the corporate party shall obtain substitute counsel, who shall file a substitution of attorney no later than 30 days from service of this order. Techrobit must appear at the Case Management Conference set for November 25, 2026 at 10:00 a.m. in Department 12. The corporate defendant is advised that it may not appear in propria persona through an officer, director, or shareholder. Failure to timely obtain substitute counsel may result in the striking of its pleadings, entry of default, dismissal of its claims, or such other sanctions as are authorized by law. Movant to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing.

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DATE: 08/05/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 2	25CV462646	Caprila One N.A. v. Trina Jennings	CLAIM OF EXEMPTION HEARING: CLAIM OF EXEMPTION The Court defers ruling on the debtor's Claim of Exemption and requests additional documentation pursuant to CCP §703.540. Within 30 days, the debtor shall file and serve documentation supporting the claimed monthly expenses, including but not limited to: • Proof of earnings; • Proof of rent or housing payments (such as a lease agreement, rent receipts, or bank statements reflecting rent payments); • Documentation supporting utilities, insurance, medical bills, etc. • Any other documentation reasonably demonstrating the claimed monthly expenses. Upon receipt and review of the documentation, the Court will determine whether the debtor's earnings are necessary for the support of the debtor and her dependents under CCP §706.050 and whether the claimed exemption should be sustained in whole or in part. The Hearing on Claim of Exemption will be continued to September 23, 2026 at 9:01 in Department 12. It is so ordered.
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Calendar Line 1**Case Name:** Northeast Securities v. Wenbin et al.**Case No.:** 23CV420300**PROPOSED INTERVENOR LIHUA SONG'S MOTION FOR LEAVE TO INTERVENE**

Proposed intervenor Lihua Song seeks leave to intervene pursuant to California Code of Civil Procedure section 387(d)(1)(B). Song is a judgment creditor of defendant Wenbin Que, holding a final federal judgment confirming an arbitration award. This action, filed by plaintiff Northeast Securities Co., Ltd., seeks to avoid allegedly fraudulent transfers under California's Uniform Voidable Transactions Act involving three California real properties. Song contends that disposition of this action may impair her ability to enforce her judgment.

On February 6, 2026, three days after Song filed this motion, defendant Xiaolan He filed a Chapter 7 bankruptcy petition. The parties (other than Song) agreed to stay this action pending resolution of the bankruptcy.

LEGAL STANDARD

Code of Civil Procedure section 387(d)(1)(B) provides for mandatory intervention when a nonparty claims an interest relating to the property or transaction that is the subject of the action, is so situated that disposition may impair or impede that person's ability to protect that interest, and the interest is not adequately represented by existing parties. Cal Code Civ Proc § 387.

To establish mandatory intervention, Song must demonstrate: (1) a timely application; (2) an interest relating to the property or transaction at issue; (3) that disposition may impair or impede her ability to protect that interest; and (4) that her interest is not adequately represented by existing parties.

For permissive intervention under section 387(d)(2), the court exercises discretion considering: (1) proper procedures; (2) direct and immediate interest; (3) whether intervention will enlarge the issues; and (4) whether reasons for intervention outweigh opposition.

ANALYSIS**A. Timeliness**

Timeliness is measured from when the proposed intervenor knew or should have known their interests were not being adequately protected, not from when they learned of the litigation. *Ziani Homeowners Assn. v. Brookfield Ziani LLC* (2015) 243 Cal.App.4th 274, 282.

Song's motion is untimely. Plaintiff filed this action on August 3, 2023, challenging the same April 2023 deeds of trust and California properties that Song subsequently targeted in her own federal attachment motion filed October 12, 2023. Song's federal motion discussed the

identical transfers, identified defendant Lin, and provided the same background regarding Lin's business relationship with the judgment debtors—all matters alleged in plaintiff's complaint.

Plaintiff recorded Notices of Pendency of Action against all three California properties on September 8, 2023, providing constructive notice. Yet Song waited until January 14, 2026—more than two years—to seek intervention.

The complaint has remained substantively unchanged since filing. Song's vague assertion that intervention "became clear" as the action "progressed" is insufficient when the record establishes she knew of the challenged transactions by October 2023. The most important consideration is prejudice caused by delay, and here the delay exceeds two years despite Song's early knowledge. *Truck Ins. Exchange v. Superior Court* (1997) 60 Cal.App.4th 342, 351.

B. Lack of Direct and Immediate Interest

Song lacks the direct and immediate interest required for intervention. Her interest is that of a competing creditor seeking to collect from the same debtor—precisely the type of consequential interest California courts consistently hold insufficient. *City and County of San Francisco v. State of California*, (2005)128 Cal. App. 4th 1030, 1037.

An interest is consequential when the action does not directly affect it, although results may indirectly benefit or harm its owner. "An unsecured creditor of a defendant who will be rendered unable to pay the debt if he loses a lawsuit is held to only have a consequential interest not justifying intervention." *Fireman's Fund Ins. Co. v. Gerlach* (1976) 56 Cal. App. 3d 299, 303.

Song holds a separate judgment against Que arising from an entirely different 2014 transaction. Plaintiff holds its own judgment based on separate 2016 equity repurchase agreements. Both creditors seek to enforce their respective judgments against assets allegedly transferred by the common debtor. The fact that both target the same California properties does not transform Song's consequential interest into a direct one.

Any judgment determining the validity of the challenged transfers will affect Song only indirectly by potentially reducing or enlarging the pool of available assets. This is the hallmark of a consequential interest.

C. No Impairment of Ability to Protect Interests

Song cannot demonstrate that disposition of this action will impair her ability to protect her interests. Even if plaintiff prevails and the challenged transfers are avoided, Song retains all enforcement rights. She can pursue her own UVTA claims, obtain judgment liens, levy on assets, and pursue any other remedy available to a judgment creditor.

Conversely, if Plaintiff does not prevail, Song is not bound by that result under principles of res judicata or collateral estoppel. The standard asks whether disposition will, as a practical matter, impair the intervenor's ability to protect that interest. *Hodge v. Kirkpatrick Development, Inc.* (2005) 130 Cal. App. 4th 540, 555. Song points to no such practical

impairment. Her enforcement rights exist independently and will continue regardless of this litigation's outcome.

D. Permissive Intervention Also Fails

Permissive intervention requires consideration of whether intervention will enlarge the issues and whether reasons for intervention outweigh opposition. *South Coast Air Quality Management Dist. v. City of Los Angeles* (2021); 71 Cal.App.5th 314, 325; *Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 386.

Song's proposed complaint would substantially expand this action by injecting her separate 2014 agreement, 2021 arbitration award, federal confirmation proceedings, and distinct \$52 million-plus judgment. This would require the parties to address the validity and enforceability of Song's separate arbitration award and federal judgment, the merits of her independent UFTA claims, priority disputes between creditors, and Song's request for multiple forms of relief.

This expansion creates substantial prejudice. Written discovery is substantially complete. The action has been stayed pending defendant He's bankruptcy proceedings. Song's two-year delay compounds this prejudice.

Judicial efficiency is not served by consolidating separate creditor enforcement actions with distinct judgments, claims, and remedies simply because they target overlapping assets. Song's independent remedies remain available without burdening this litigation.

DISPOSITION

Song has failed to establish a right to mandatory intervention. Her motion is untimely, she lacks a direct and immediate interest, her ability to protect her interests will not be impaired, and her interests are adequately represented by plaintiff to the extent they overlap. Permissive intervention is likewise inappropriate. Intervention would substantially enlarge the litigation, prejudice existing parties who have substantially completed discovery and are subject to a bankruptcy stay, and would not serve judicial efficiency given Song's available independent remedies.

Accordingly, the motion to intervene is DENIED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing.

Calendar Line 8**Case Name:** *Richard Chamberlain v. Jason Chamberlain***Case No.:** 25-CV-457483

Motion for New Trial by Plaintiff Richard Chamberlain

Factual and Procedural Background

This is an action for defamation and related claims brought by plaintiff Richard Chamberlain (“Plaintiff”) against his brother, defendant Jason Chamberlain (“Defendant”). Both parties are acting as self-represented litigants.

According to the first amended complaint (“FAC”), in 2000, Defendant engaged in wrongful conduct involving Plaintiff’s then girlfriend. (FAC at ¶ 7.) Thereafter, Defendant made repeated false statements to family members and others, using this incident as a basis to defame Plaintiff. (Ibid.)

Over the years, Defendant repeated false statements portraying Plaintiff as dishonest, delusional, and threatening. (FAC at ¶ 11.) These statements were understood as assertions of fact and tended to injure Plaintiff’s reputation in the eyes of family members, neighbors, and community witnesses. (Ibid.)

On January 27, 2025, Plaintiff filed a complaint against Defendant alleging a single cause of action for defamation.

On November 3, 2025, Plaintiff filed the operative FAC against Defendant asserting causes of action for: (1) defamation per se; (2) defamation (general); (3) intentional infliction of emotional distress; and (4) false light.

On February 23, 2026, Defendant filed a motion for summary judgment, or in the alternative, summary adjudication to the FAC. Plaintiff filed written opposition. The motion was heard and submitted on May 8, 2026. Thereafter, this court filed an order granting Defendant’s motion for summary judgment.

On May 29, 2026, Plaintiff filed notice of his intention to move for a new trial, now the present motion before the court.¹ Defendant filed written opposition. Plaintiff filed reply papers.

Self-Represented Litigants

Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 [“self-represented litigants are generally entitled to no special treatment”].) “[M]ere self-representation is not a ground for exceptionally lenient treatment.”

¹ Plaintiff filed his initial memorandum of points and authorities in support of the motion for new trial on June 11, 2026. Thereafter, Plaintiff filed a “revised supplemental” memorandum of points and authorities in support of the motion for new trial on June 15, 2026.

(*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, “exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at p. 985.)

Motion for New Trial

Plaintiff moves for a new trial on the following grounds: (1) irregularity in the proceedings (Code Civ. Proc., § 657(1)); (2) accident or surprise (Code Civ. Proc., § 657(3)); (3) decision is against the law (Code Civ. Proc., § 657(6).); and (4) triable issues of material fact exist.²

Legal Standard

“A motion for summary judgment is to be granted ‘if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.’ [Citation.]” (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1103.)

“ ‘A motion for new trial is appropriate following an order granting summary judgment.’ [Citation.] ‘The new trial motion may seek reversal of the summary judgment on “any available statutory ground for a new trial.” ’ [Citation.]” (*Braganza v. Albertson’s LLC* (2021) 67 Cal.App.5th 144, 159.)

“The authority of a trial court in this state to grant a new trial is established and circumscribed by statute. [Citation.] [Code of Civil Procedure] Section 657 sets out seven grounds for such a motion: (1) ‘Irregularity in the proceedings’; (2) ‘Misconduct of the jury’; (3) ‘Accident or surprise’; (4) ‘Newly discovered evidence’; (5) ‘Excessive or inadequate damages’; (6) ‘Insufficiency of the evidence’; and (7) ‘Error in law.’ ” (*Oakland Raiders v. National Football League* (2007) 41 Cal.4th 624, 633.)

“This right to move for a new trial is a creature of statute and the procedure prescribed by law must be closely followed. [Citations.] Strict construction of the statute ensures protection of the litigant’s rights. [Citation.] Accordingly, the motion for new trial can only be granted on a ground specified in the notice of intention to move for a new trial. [Citations.]” (*Wagner v. Singleton* (1982) 133 Cal.App.3d 69, 72.)

When the trial court “grants a motion for new trial, ‘the court shall specify the ground or grounds upon which it is granted and the court’s reason or reasons for granting the new trial upon each ground stated.’ [Citations.]” (*Johnson v. Monsanto Co.* (2020) 52 Cal.App.5th 434, 461.)

Irregularity in the Proceedings

“A new trial may be granted where there is an ‘[i]rregularity in the proceedings.’ [Citation.] An ‘irregularity in the proceedings’ is a catchall phrase referring to any act that (1) violates the right of a party to a fair trial and (2) which a party ‘cannot fully present by exceptions taken during the progress of the trial, and which must therefore appear by affidavits.’ [Citations.]” (*Montoya v. Barragan* (2013) 220 Cal.App.4th 1215, 1229-1230.)

² In reply, Plaintiff clarified that he is not seeking a new trial on the ground of “decision against law” as it was not raised in his notice of intent. Instead, this point is incorporated with his discussion under “irregularity in the proceedings.”

Plaintiff contends there was an irregularity in the proceedings as Defendant obstructed discovery while the motion for summary judgment was pending. To counter this obstruction, Plaintiff filed discovery motions that were scheduled for hearing sometime after the motion for summary judgment. Plaintiff appears to suggest that, had his discovery motions been heard prior to the motion for summary judgment, he would have been able to raise a triable issue of fact with respect to his defamation lawsuit. The court however is not persuaded as Plaintiff's remedy was to seek a request to continue the motion for summary judgment under the guidelines set forth in Code of Civil Procedure section 437c, subdivision (h) to allow his discovery motions to be heard and to obtain necessary discovery before the court could rule on Defendant's dispositive motion. But, as stated in the court's summary judgment order, Plaintiff did not make such request in his opposition to the motion for summary judgment or articulate how any such discovery would raise a triable issue of fact to defeat the motion. The court thus finds there is no perceived irregularity in the proceedings to justify granting a motion for new trial.

Accident or Surprise

The terms "accident" and "surprise," as used in Code of Civil Procedure, section 657, are given substantially the same meaning. (*Kauffman v. De Mutiis* (1948) 31 Cal.2d 429, 432; *South Santa Clara Valley Water Conservation Dist. v. Johnson* (1964) 231 Cal.App.2d 388, 406 (*South Santa Clara Valley*).) A court may grant a new trial based on accident or surprise that the moving party could not have guarded against by exercising ordinary prudence. (Code Civ. Proc., § 657(3).) As one California appellate court explained:

“ ‘Surprise’ as a ground for a new trial denotes some condition or a situation in which a party to an action is unexpectedly placed to his detriment. The condition or situation must have been such that ordinary prudence on the part of the person claiming surprise could not have guarded against and prevented it. Such party must not have been negligent in the circumstances. [Citations.]” (*Wade v. De Bernardi* (1970) 4 Cal.App.3d 967, 971.)

“The granting or denial of a motion for new trial on the ground of surprise is largely a matter of discretion.” (*South Santa Clara Valley, supra*, 231 Cal.App.2d at p. 407.)

Plaintiff argues the court's order granting summary judgment constituted "surprise" as it instantly mooted his pending discovery motions. This argument however is unavailing as Plaintiff had an opportunity to guard against this outcome by either submitting admissible evidence in support of his opposition to the motion for summary judgment or seeking a continuance of that motion under Code of Civil Procedure section 437c, subdivision (h). Plaintiff did neither and thus failed to exercise ordinary prudence that could have guarded against the granting of Defendant's motion for summary judgment. Nor can it be said that the mooting of the discovery motions was "unexpected" as that is the logical consequence of a trial court order granting a motion for summary judgment and thus disposing of the lawsuit. (See *Ahern v. Dillenback* (1991) 1 Cal.App.4th 36, 41 [purpose of summary judgment is to expedite litigation by avoiding needless trials].) Therefore, the court declines to exercise its discretion to grant a motion for new trial based on accident or surprise.

Triable Issues of Material Fact

“The new trial motion may seek reversal of the summary judgment on the ground that there are triable issues of fact.” (*Doe v. United Air Lines, Inc.* (2008) 160 Cal.App.4th 1500, 1504-1505.)

As a final point, Plaintiff asserts that triable issues of fact remain to be decided in the case. In support, Plaintiff relies on a “Corrected Separate Statement” that disputes material facts raised by Defendant’s motion for summary judgment. (See Plaintiff’s Decl. at Ex. C.) But, by Plaintiff’s own admission, the “supposed” triable issues of fact rely on evidence (i.e., the suppressed native records and admissions) that has not been produced in discovery and is not before the court for purposes of this motion. (Id. at ¶ 6.) And evidence that constitutes a triable issue of material fact cannot be derived from speculation, guesswork or mere possibilities. (See *Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481 [party opposing summary judgment cannot establish triable issue with evidence based on speculation, guesswork or mere possibilities]; see also *Pipitone v. Williams* (2016) 244 Cal.App.4th 1437, 1453 [“A triable issue of fact can only be created by a conflict of evidence, not speculation or conjecture.”].)

Consequently, the motion for new trial is DENIED. Having denied the motion, the court declines to consider Plaintiff’s omnibus motion, filed on July 10, 2026, for restoration and scheduling of discovery matters.

Disposition

The motion for new trial is DENIED.

The court will prepare the order.

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Calendar line 9

Case Name: *Onemail Financial, LLC v. Mario Melendez Castro*

Case No.: 25CV459816

Defendant's Motion for Reconsideration to Set Aside Default

The Court recognizes that a motion for reconsideration ordinarily requires a showing of new or different facts, circumstances, or law. (CCP § 1008.) The Court also notes that no default judgment has been entered and California law strongly favors resolution of actions on their merits whenever possible.

Defendant disputes the circumstances surrounding substitute service on March 13, 2025 and asserts he did not receive actual notice of the action until by mail on July 25, 2025, at which time he promptly contacted Plaintiff's counsel. Defendant further contends that the descriptions contained in the proof of service do not match the individuals allegedly served and disputes statements regarding his whereabouts at the time of service.

While the Court recognizes Plaintiff's cited authority and the prima facie validity of service pursuant to CCP 415.20, Defendant's contentions raise a sufficient question regarding Defendant's actual notice of the action.

The Court finds that setting aside the default at this stage will permit adjudication on the merits and will not result in substantial prejudice to Plaintiff beyond the delay inherent in litigation. By contrast, denial of relief would likely result in disposition of the action without a determination on the merits. Under these circumstances, and in light of the strong policy favoring resolution of cases on their merits, the Court exercises its discretion pursuant to CCP section 473(b) to grant relief from default.

Accordingly,

Defendant's motion is GRANTED. The entry of default entered against Defendant is VACATED. Defendant shall file and serve a responsive pleading within 14 days of service of the notice of entry of this order.

Calendar line 10 & 11**Case Name:** *Linda Johnson et al v. Hanford Hotels, Inc.***Case No.:** 25CV477676

Plaintiff's Application to Seal Portions of Moving Papers in Support of Petition for Approval of Minor's Compromise

PROCEDURAL BACKGROUND

This wrongful death action arises from the death of Terril Wade Johnson, Sr., who died on May 22, 2025, from severe scalding burns sustained in a hotel shower at the Fairfield by Marriott Inn & Suites San Jose Airport. Plaintiffs filed the complaint on October 15, 2025. The Court granted mandatory trial preference under Code of Civil Procedure section 36(a) on January 23, 2026, based on the advanced age and serious illness of plaintiff Linda Johnson, the decedent's surviving spouse. The parties reached a global settlement on May 14, 2026.

GOVERNING LAW

Unless confidentiality is required by law, court records are presumed to be open. Cal. Rules of Court, rule 2.550. The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. Cal. Rules of Court, rule 2.550, (Timothy W. v. Julie W. (2022) 85 Cal.App.5th 648)

An order sealing the record must specifically state the facts that support the findings and direct the sealing of only those documents and pages, or portions thereof, that contain the material that needs to be placed under seal. Cal. Rules of Court, rule 2.550. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. Rules of Court, rule 2.551.

The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178) ; Savaglio v. Wal-Mart Stores, Inc. (2007), 149 Cal. App. 4th 588. Under the California Constitution, the people have the right of access to information concerning the conduct of the people's business, and court records are presumptively open to public scrutiny. Cal Const, Art. I § 3.

A party seeking to seal documents must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them. H.B. Fuller Co. v. Doe, (2007) 151 Cal. App. 4th 879. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to such treatment, the nature of the harm threatened by disclosure, and countervailing considerations.

Individuals have a recognized privacy interest in their medical and mental health records that can constitute an overriding interest under rule 2.550(d). Overstock.com, Inc. v. Goldman

Sachs Group, Inc., (2014) 231 Cal. App. 4th 471. The court must balance the privacy interest against the public right of access, mandating sealing only where an overriding privacy interest would be prejudiced, the sealing is narrowly tailored, and no less restrictive means (such as redaction) suffice.

The protection of trade secrets and confidential financial information of third parties may constitute overriding interests supporting sealing. However, a settlement agreement containing a confidentiality clause may not be sealed merely because of the confidentiality provision; an overriding interest and specific showing of serious injury are required. (*Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97.)

ANALYSIS

Medical and Mental Health Records (Attachment 8)

The Court finds that Petitioner has established good cause to seal Attachment 8 to the Petition, which contains Terrilynn Johnson's confidential medical and mental health records.

Overriding Interest

Individuals have a recognized privacy interest in their medical and mental health records that constitutes an overriding interest under California Rules of Court, rule 2.550(d). Article I, section 1 of the California Constitution grounds the right to privacy in confidential medical and mental health affairs. The privacy interest in mental health treatment records is particularly strong given their intimate and sensitive nature.

Here, Attachment 8 contains records and information regarding minor Terrilynn Johnson's private medical and mental health treatment arising from the traumatic death of her grandfather. Terrilynn is a minor, and her mental health treatment addresses the psychological impact of her grandfather's death by scalding. This constitutes an overriding interest that overcomes the right of public access to the record.

Substantial Probability of Prejudice

Disclosure of Terrilynn Johnson's mental health records on the public record would embarrass and distress her by exposing intimate details of her mental health history. The Court finds a substantial probability that Terrilynn's privacy interest will be prejudiced if these records are not sealed, particularly given her status as a minor and the sensitive nature of mental health treatment following a family member's traumatic death.

Narrowly Tailored

The proposed sealing is narrowly tailored because it is limited solely to Attachment 8, which contains the medical and mental health records themselves. The Petition itself will remain public, as will the Court's order approving the compromise (subject to redaction of confidential settlement terms, discussed below). The sealing extends only to the specific documents containing the protected health information.

No Less Restrictive Means

The Court finds no less restrictive means exist to protect Terrilynn Johnson's mental health privacy. Redaction would be insufficient because the records are relevant only to the Court's evaluation of the Petition and serve no public function. The records are attached to demonstrate the nature and extent of Terrilynn's injuries and the reasonableness of the proposed allocation; they are not used to adjudicate a disputed claim or establish a legal precedent requiring public scrutiny.

The Court expressly finds that sealing Attachment 8 (Terrilynn Johnson's medical and mental health records) satisfies all requirements of California Rules of Court, rule 2.550(d).

Settlement Amount and Financial Terms

Petitioner seeks to seal the settlement amount and financial terms disclosed in forms MC-350, MC-351, and MC-355 based solely on the confidentiality provisions of the parties' Settlement Agreement. Petitioner expressly disclaims any independent advocacy for sealing this information and takes no position on whether the confidentiality terms satisfy the legal requirements for sealing.

The Court finds that Petitioner has not met the burden of establishing good cause to seal the settlement amount.

Party Stipulation Insufficient

A court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. A settlement agreement containing a confidentiality clause may not be sealed merely because of the confidentiality provision; an overriding interest and specific showing of serious injury are required..

No Specific Showing of Overriding Interest or Prejudice

Petitioner has not identified any overriding interest that would be prejudiced by disclosure of the settlement amount beyond the parties' contractual agreement to keep it confidential. No defendant has filed a declaration or memorandum articulating a specific business interest, competitive harm, or other cognizable injury that would result from public disclosure of the settlement amount.

The Court recognizes that Petitioner filed this motion to comply with contractual obligations and reserved the right to challenge the confidentiality provision. However, the burden of establishing good cause for sealing rests on the party seeking the sealing order. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to protection, the nature of the harm threatened by disclosure, and countervailing considerations.

Public Interest in Settlement Amounts

Court records concerning settlements in wrongful death cases arising from injuries at public accommodations implicate a strong public interest. The public has a right of access to information concerning the conduct of the people's business, including judicial proceedings and court-approved settlements. Cal Const, Art. I § 3. The settlement amount in a court-approved minor's compromise is a material fact relevant to the Court's exercise of its authority to approve or reject the settlement as fair and reasonable.

The burden rests on the party seeking to deny public access to court records to establish compelling reasons why and to what extent the records should be made private. *Copley Press v. Superior Court*, (1988) 63 Cal. App. 4th 367. Here, no party has carried that burden with respect to the settlement amount.

Temporary Sealing Pending Further Showing

Because no defendant has opposed this motion or submitted evidence supporting sealing of the settlement amount, and because Petitioner expressly declined to advocate for sealing, the Court has received no evidentiary basis on which to make the required findings under rule 2.550(d) as to the settlement amount.

The Court will grant the motion to seal the settlement amount on a temporary basis only, conditioned upon defendants filing, within 7 days of the date of this order, a declaration and memorandum establishing with specificity: (a) the overriding interest that would be prejudiced by disclosure; (b) the substantial probability that the interest will be prejudiced absent sealing; (c) why the proposed sealing is narrowly tailored; and (d) why no less restrictive means exist to achieve the overriding interest.

If defendants fail to file such showing within 7 days, the settlement amount disclosed in forms MC-350, MC-351, and MC-355 shall be unsealed and made part of the public record. If defendants timely file such showing, the Court will set a further hearing to determine whether permanent sealing is warranted.

Plaintiff to prepare the final proposed order, accompanied by the necessary EFS-020 within 7 days of the hearing.